



# RVSR JOB AID

## Bilateral Factors

### Definition

The bilateral factor applies when a Veteran's disability affects both arms, both legs, or paired skeletal muscles. This factor compensates the Veteran for the loss of function based on impairment of two upper or two lower extremities.

For the purposes of the bilateral factor:

- **Arms** and **legs** refer to the upper or lower extremities as a whole
- Any compensable disability to any part of both arms (including hand, elbow, shoulder) or both legs (including foot, knee, thigh) qualifies for this extra bonus rating

When you have bilateral factors for consideration, all disabilities affected by bilateral factors should be combined before progressing to conditions not affected by bilateral consideration.

### Limitations

The combined rating for disabilities of an extremity shall not exceed the rating for the amputation at the elective level, were amputation to be performed.

Refer to 38 CFR 4.68 – Amputation rule, for more information.

### Example

For example, Sam's combined evaluations for two disabilities below the knee (such as 30%, 30%) shall not exceed the 40% evaluation, under diagnostic code 5165, which is amputation, at a lower level, permitting prosthesis. This 40% rating may be further combined with evaluations for disabilities above the knee, but not to exceed the above the knee amputation elective level as stated in the Rating Schedule.

### Calculating Bilateral Factors into a Rating by Hand

1. Combine the disabilities for the upper right and left sides and/or lower right and left sides as usual
2. **Add** (not combine) 10% **of this value** as the bilateral factor
3. Continue combining disability percentages as usual



# RVSR JOB AID

- a. Round the nearest percentage
- b. Arrange all remaining disabilities in the order of severity (highest to lowest)
- c. Combine all disability ratings
- d. Round off if needed

## **In case where both upper and lower extremities are affected:**

1. Combine all four disability ratings
2. Add 10% of that total for the bilateral factor
3. Round as needed

If three extremities have compensable disabilities, the bilateral factor applies only to the paired conditions.